

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:
Date Purchased:

-----X
ROBERT DUNCAN,

SUMMONS

Plaintiff,

-against-

Plaintiff designates
BRONX County as the
place of trial

CITY OF NEW YORK, Det. WILBERT HERNANDEZ,
Det. MATTHEW DEGROTE, and OFFICERS JOHN
DOE I - V , names being fictitious and meant to designate
additional offending officers unknowable by Plaintiff,
Individually and in their official capacities,
Defendants.

The basis of venue is:
CPLR 504 (3)

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To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and
serve a copy of your answer, or, if the complaint is not served with this summons, to
serve a notice of appearance on the Plaintiff's attorneys within twenty days after the
service of this summons, exclusive of the day of service, where service is made by
delivery upon you personally within the state, or within 30 days after completion of
service where service is made in any other manner. In case of your failure to appear or
answer, judgment will be taken against you by default for the relief demanded in the
complaint to be assessed by the Court.

Dated: Bronx, N.Y.
September 23, 2023


By: **JONATHAN L. GLEIT, ESQ.**
Attorney for Plaintiff

888 Grand Concourse
Suite 1-O
Bronx, NY 10451
(718) 742-0200

To:
CITY OF NEW YORK CORPORATION COUNSEL
100 Church Street, NYC Law Dept.
New York, New York 10007;
Det. WILBERT HERNANDEZ, Shield 4925, NARCB BX, and Det. MATTHEW DEGROTE Shield 3462
1 Police Plaza, NY NY 10038 Room 1310

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
ROBERT DUNCAN,

Index No.:

Plaintiff,

VERIFIED COMPLAINT

-against-

CITY OF NEW YORK, Det. WILBERT HERNANDEZ,
Det. MATTHEW DEGROTE, and OFFICERS JOHN
DOE I - V , names being fictitious and meant to designate
additional offending officers unknowable by Plaintiff,
Individually and in their official capacities,

Defendants.
-----X

Plaintiff, by his attorney, Jonathan L. Gleit, Esq., complaining of the Defendants,

respectfully alleges, upon information and belief, as follows:

AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF THE
PLAINTIFF ROBERT DUNCAN

1. At the time of the commencement of this action, plaintiff ROBERT DUNCAN

was and still is a resident of the County of Bronx, City and State of New York.

2. That the causes of action alleged herein arose in the County of Bronx, City and

State of New York.

3. That at all times herein mentioned, Defendant CITY OF NEW YORK was, and still is, a Municipal Corporation and body politic, duly formed, organized and existing under and by virtue of the laws of the State of New York.
4. That the CITY OF NEW YORK maintains a Police Department.
5. That on and about June 29, 2022, Det. WILBERT HERNANDEZ was employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.
6. That on and about June 29, 2022, at approximately 6 A.M., Det. WILBERT HERNANDEZ was working and acting within the scope of his employment as a Police Officer, and under the color of law.
7. That on and about June 29, 2022, Det. MATTHEW DEGROTE was employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.
8. That on and about June 29, 2022, at approximately 6 A.M., Det. MATTHEW DEGROTE was working and acting within the scope of his employment as a Police Officer, and under the color of law.
9. That on and about June 29, 2022, OFFICERS JOHN DOE 1 - V, whose names are presently unknowable by Plaintiff, but are necessarily known to Defendants by virtue of his/her/their involvement with the arrest of Plaintiff, was/were employed by the CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.

10. That on and about June 29, 2022, at approximately 6 A.M., OFFICERS JOHN DOE 1 - V were working and acting within the scope of his/her/their employment as Police Officers, and under the color of law.
11. That on or about June 29, 2022 at approximately 6 A.M., at or near the vicinity of 1566 White Plains Road, Bronx, New York, the Plaintiff ROBERT DUNCAN was improperly arrested and confined without knowledge of warrant, without privilege, proper authority or justification, having no reason in law or in fact to arrest or confine ROBERT DUNCAN.
12. That at the time and place mentioned above, the plaintiff ROBERT DUNCAN was lawfully present in the vicinity of the above location, having arrived only minutes before.
13. That at the time and place mentioned above, the plaintiff ROBERT DUNCAN was, and Defendants were aware that, the plaintiff ROBERT DUNCAN was a visitor to the premises.
14. That the Defendants, their agents, servants and/or employees arrested the Plaintiff ROBERT DUNCAN without any basis in law or fact and without reasonable, probable or just cause or justification.

15. That at the time and place mentioned above the Defendants were aware that any items alleged to have been illicit were secreted away, and not in an area lungable by Plaintiff and could not, in fact or law, have been possessed by Plaintiff ROBERT DUNCAN.

16. That the defendants, their agents, servants and/or employees arrested the plaintiff ROBERT DUNCAN without any basis in law or fact, by making false accusations against him, when they knew, or in the exercise of reasonable care, should have known they were false.

17. That Defendants, their agents, servants and/or employees continued to detain Plaintiff ROBERT DUNCAN and threaten and deny his freedom after they knew, or should have known, he was innocent of all charges being alleged against him.

18. That OFFICERS JOHN DOE I - V, failed to intercede in the arrest of Plaintiff despite having known, or having should have known, his arrest was unlawful and lacking in probable cause.

19. That the Defendants, their agents, servants and/or employees unlawfully arrested, detained, imprisoned and searched the Plaintiff ROBERT DUNCAN, who was aware of his unlawful detention and confinement, and took his property without any

basis in law or fact, thereby causing fright, shock, emotional distress and physical consequences.

20. That following his arrest, the Plaintiff was transported in hand restraints to the 49th Police Precinct, 2121 Eastchester Road, Bronx, New York and physically restrained and detained thereafter at Bronx County Central Booking and the Rikers Island Correctional Facility, well known for its inhumane conditions.

21. That following the aforementioned arrest, the Defendants falsely asserted that Plaintiff was in possession of unlawful narcotics, weapons and other items which false assertions violated Plaintiff's rights, including his right the a Fair Trial under the 6th Amendment to the United States Constitution as well as the New York State Constitution.

22. That the defendants Det. WILBERT HERNANDEZ, Det. MATTHEW DEGROTE, and OFFICERS JOHN DOE 1 - V did knowingly and maliciously provide false information to the prosecutor of the criminal action against plaintiff thereby initiating and causing him to suffer an unjust prosecution that defendants had no reasonable expectation would succeed, as it was without probable cause and based upon false or misleading testimony and information.

23. That the CITY OF NEW YORK and the named defendants did falsely and wrongfully arrest plaintiff without probable or reasonable cause nor knowledge of warrant, intended to and did confine plaintiff without his consent, which non-privileged confinement plaintiff was consciously aware of and did initiate a criminal proceeding without probable cause, maliciously.
24. That all criminal charges brought against plaintiff, which were brought under Docket number CR-011420-22BX in the Criminal Court of the City of New York, Bronx County and IND-72812-22/002 in the Bronx Supreme Criminal Court regarding the incidents of June 29, 2022, were dismissed on July 11, 2023, and the criminal prosecution was terminated in Plaintiff's favor.
25. That the CITY OF NEW YORK allowed, condoned, permitted and caused a policy and procedure of arresting innocent citizens and engaging in a policy and procedure of arresting persons upon pretext and/or the fabrication of evidence, without any probable cause or reasonable basis to do so for nefarious, unlawful reasons such as the fulfillment of arrest quotas, advancement of employment opportunities and to subjugate minority populations without reprimand to the offending officers.
26. That said illegal and unlawful arrests without reasonable or probable cause are a matter of policy and record and openly acknowledged or known by the defendants, yet

condoned without any reprimand of the offending officers, referral to the District

Attorney or Federal Law Enforcement officials for criminal prosecution, or even bone
fide internal investigation to deter actions like those complained of herein.

27. Said policy, practice and procedure of having arrest quotas, euphemistically known as productivity goals, which result in the false arrests of innocent persons is exhibited, for instance, in the November 1, 2011 conviction of New York Police Department Det. Jason Arbeeney, whereat Justice Gustin Reichbach commented on the evidence presented by several witnesses that officers were expected to make certain arrest goals.
28. Additionally in the case of Floyd, et al. v. City of New York, et al., In the Southern District of New York Case 08 Civ.1034, New York City Police Officer Adhyl Polanco testified in open court and under oath that the NEW YORK CITY POLICE DEPARTMENT routinely arrest primarily minority populations without a legal reason to do so, and are required or expected to do so, to satisfy arrest quotas. Said arrest quotas lead to a practice and procedure of, for instance, arresting persons for conduct that is not criminal.

29. Additionally, Officer Craig Matthews presented evidence in federal court that he was subject to retaliation for reporting said quota system and Officers Pedro Serrano

and Adrain Schoolcraft presented evidence in recorded form of the use of arrest quotas by the New York City Police Department. Other officers have made the same or similar allegations in open court.

30. Furthermore patterns of the NYPD and their officers alleging persons were involved in the sale of narcotics or weapons when the arrested persons were not, in fact, in any way involved in the sales of such items, and there was no probable cause to arrest said persons has occurred to such individuals as Tomas Robles on June 28, 2018 as well as hundreds of other innocent persons know to the defendants by virtue of the dismissal of all charges against such persons, and convictions for police officers lying or making false statements under oath, for, amongst other reasons, a lack of evidence, as well as complaints, claims and actions brought against said officers, and upon the CITY OF NEW YORK's own tabulations and investigations.

31. That more specifically, Defendant Det. WILBERT HERNANDEZ has exhibited a pattern of arresting innocent persons for merely being in the vicinity of other persons who were alleged to have engaged in drug transactions, despite not being in possession of any illicit items, or participating in any way in any illicit activities. As a non-comprehensive example, the following persons have asserted allegations substantially similar to Plaintiff: In Bronx Supreme Court, Rashaun Pimple, Index 025608/2020E,

Adenine Olanibi, Index 034315/2019E, Damaso Reyes, 021093/2018E, Julio Reynoso, 022544/2015E, and in the Southern District of New York, Clemente Beckford, Case 16CV02261 and Derrick Marcus, Case 14CV03296 as well as at least 9 allegations of misconduct have been lodged against said Defendant as well as numerous internal investigations which lead to no or perfunctory discipline and after which the officer was promoted.

32. Additionally on October 1, 2015 the New York City Department of Investigation Office of the Inspector General for the NYPD issued a report, which is incorporated herein and can be found at http://www.nyc.gov/html/oignypd/assets/downloads/pdf/oig_nypd_use_of_force_report_-_oct_1_2015.pdf. That report determined that the New York City Police Department routinely fails to discipline officers who have engaged in misconduct, and fails to adequately track instances of abuse of power, and fails to properly train officers, and despite those findings, and perfunctory attempts at remediation, the practice continues unabated, and was evidenced by the The Report of the Independent Panel on the Disciplinary System of the New York City Police Department, found at <https://www.independentpanelreportnypd.net> and incorporated herein.

33. That no negligence or actions on the part of the Plaintiff contributed to the occurrences alleged herein in any manner whatsoever.

34. The herein above described actions and omissions, engaged in under the color of law by the defendants, their supervisors and commanders and the CITY OF NEW YORK, sued as a person within the meaning of Title 42 U.S.C. 1983, et seq., by policy, institutionalized procedure and act, deprived the Plaintiff ROBERT DUNCAN of rights secured by the Constitution and laws of the United States, including, but not limited to the First Amendment right of freedom of expression, the Fourth Amendment right to be free from unlawful seizures of her person, the Fifth Amendment rights of due process of law and to equal protection of the laws, including the right to be free from unjustified confinement utilized by the police, the Sixth Amendment right to a fair trial, the Eighth Amendment right to be free from cruel and unusual punishment, the 14th Amendment's right to be free of a deprivation of liberty without due process and equal protection, and as applicable under Title 42 U.S.C. 1983, et seq.

35. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

36. That as a result of the foregoing, the Plaintiff ROBERT DUNCAN was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF OF THE**PLAINTIFF ROBERT DUNCAN**

37. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 36 as though more fully set forth herein.

38. That on August 1, 2023, the New York City Law Department entered a Stipulation, So-Ordered by Justice Mitchell J. Danziger under Bronx Supreme Court Index No. 810801/2023E, and annexed hereto as Exhibit "A", whereat plaintiff had caused a Notice of Claim, sworn to by or on behalf of the claimant, to be presented to the defendant CITY OF NEW YORK, by presenting a copy thereof to the offices of the defendant CITY OF NEW YORK, which said Notice of Claim set forth the name and post office address of the claimant and claimant's attorney, the nature of the claim, the time when, the place where, and the manner in which the claim arose and items of damage or injuries claimed to have been sustained, so far as then practicable.

39. At least thirty (30) days have elapsed prior to the commencement of this action since the service of such Notice of Claim as aforesaid and adjustment of payment thereof has been neglected or refused by the defendant,

40. That said So-Ordered Stipulation required the CITY OF NEW YORK to Notice Plaintiff of a General Municipal Law §50h hearing within 60 days thereof, and also permitted Plaintiff to file the within Complaint prior to the hearing being noticed, which, as of this date, it has not.

41. That this action is being commenced within one year and ninety days after accrual of the causes of action, or within the time allowed by law.

42. That on or about June 29, 2022 at approximately 6 A.M., at or near the vicinity of 1566 White Plains Road, Bronx, New York, the Plaintiff ROBERT DUNCAN was improperly arrested and confined without knowledge of warrant, privilege, proper authority or justification or reasonable or probable cause, having no reason in law or in fact to arrest ROBERT DUNCAN.

43. That at all times herein mentioned, Defendants, their agents, servants and / or employees, deprived the Plaintiff ROBERT DUNCAN of Due Process under Law.

44. That the acts of the Defendants, CITY OF NEW YORK, their agents, servants and / or employees, Det. WILBERT HERNANDEZ, Det. MATTHEW DEGROTE, OFFICERS JOHN DOE 1 - V were acts of discrimination, were racist, and improper, and that the Defendants' actions amounted to False Arrest, and the Defendants were otherwise careless, reckless and negligent.

45. That the Plaintiff ROBERT DUNCAN, being aware of his unjust confinement, suffered severe and serious physical, emotional trauma, damages and injuries due to the negligence, carelessness and recklessness of Defendants CITY OF NEW YORK, Det. WILBERT HERNANDEZ, Det. MATTHEW DEGROTE and OFFICERS JOHN DOE 1 - V.

46. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

47. That as a result of the foregoing, the plaintiff ROBERT DUNCAN was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF OF THE

PLAINTIFF ROBERT DUNCAN

48. That Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 47 as though more fully set forth herein.

49. That defendants, their agents, servants and/or employees initiated a prosecution of plaintiff and continued to threaten plaintiff's liberty and freedom after they knew, or should have known, he was innocent of all charges being alleged against him.

50. That the defendants, their agents, servants and/or employees continued to prosecute the criminal action against the plaintiff due to racism and prejudice and without any basis in law or fact.

51. That the defendants Det. WILBERT HERNANDEZ, Det. MATTHEW DEGROTE and OFFICERS JOHN AND/OR JAMES DOE, did knowingly and maliciously provide false information to the prosecutor of the criminal action and/or falsely and/or misleadingly provide sworn testimony or statements against Plaintiff thereby causing him to suffer an unjust prosecution initiated without probable cause that the prosecutions would succeed.

52. That all criminal charges brought against plaintiff, which were brought under Docket number CR-011420-22BX in the Criminal Court of the City of New York, Bronx County and IND-72812-22/002 in the Bronx Supreme Criminal Court regarding the incidents of June 29, 2022, were dismissed on July 11, 2023, and the criminal prosecution was terminated in Plaintiff's favor.

53. That by reason of the aforementioned, the Defendants actions amounted to a malicious prosecution of ROBERT DUNCAN.

54. As a result of the malicious prosecution, Plaintiff's liberty was threatened and suffered the humiliation, mental anguish, indignity and frustration of an unjust criminal

prosecution, and was otherwise damaged and injured and forced to defend his liberty for a period of approximately three hundred and seventy seven days.

55. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

56. That as a result of the foregoing, the Plaintiff ROBERT DUNCAN was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A FOURTH CAUSE OF ACTION ON BEHALF OF THE

PLAINTIFF ROBERT DUNCAN

57. That Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 56 as though more fully set forth herein.

58. That the Defendants carelessly, recklessly and negligently failed to properly interview, hire, select, train, manage, supervise and control its employees, agents, and / or servants and negligently retained its employees, agents, and / or servants.

59. That the Defendants carelessly, recklessly and negligently failed to properly interview, hire, select, train, manage, supervise and control its employees, agents, and / or servants and negligently retained its employees, agents, and / or servants in the proper and lawful arrest of individuals.

60. That solely by reason of the aforesaid occurrence, and as a direct and proximate result of the Defendant's negligence, Plaintiff ROBERT DUNCAN was denied freedom and rights under the federal and state constitutions and received great and severe injuries with accompanying physical and mental pain and suffering; that the plaintiff was made, and still are and will continue to be sick, sore, lame and disabled and sustained other injuries, both internal and external, all of which, upon information and belief, will be permanent; that it was necessary and will be so in the future, to incur medical expenses for the care, treatment and attention of the Plaintiff and for the purchase of drugs and medicines, and that Plaintiff was and in the future will be prevented from attending to Plaintiff's usual vocation and avocations; all to the Plaintiff's damage in sums which exceed the jurisdiction of all lower Courts.

61. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

WHEREFORE, Plaintiff demands judgment against the Defendants on the First Second, Third and Fourth Causes of Action, and inclusive of punitive damages as applicable to individual defendants, and attorneys fees as permitted by statute, in sums which exceed the jurisdiction of all lower Courts, together with the costs and disbursements of this action.

Dated: Bronx, N.Y.

September 23, 2023



By: JONATHAN L. GLEIT, ESQ.

Attorney for Plaintiff

ROBERT DUNCAN

888 Grand Concourse

Suite 1-O

Bronx, NY 10451

(718) 742-0200

To:

CITY OF NEW YORK CORPORATION COUNSEL

100 Church Street, NYC Law Dept.

New York, New York 10007;

Det. WILBERT HERNANDEZ, Shield 4925, NARCBBX, and Det. MATTHEW DEGROTE Shield 3462

1 Police Plaza, NY NY 10038 Room 1310

ATTORNEY'S VERIFICATION

Jonathan L. Gleit, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am the attorney of record for Plaintiff,

ROBERT DUNCAN

I have read the annexed

COMPLAINT

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

The reason this verification is made by myself and not Plaintiff is that Plaintiff is presently outside of the county wherein your affirmant maintains his virtual office.

DATED: Tarrytown, N.Y.

September 23, 2023



JONATHAN L. GLEIT, ESQ.